
Elon Musk Says He's Suing OpenAI Because They Abandoned Their Mission. I Think His Real Reason Is Much More Embarrassing.

Published by

Tony Ho Tran

Estimated reading time

7 min

Added on

2026-05-01

Address

<https://slate.com/technology/2026/04/elon-musk-openai-trial-sam-altman.html>

Elon Musk Says He's Suing OpenAI Because They Abandoned Their Mission. I Think His Real Reason Is Much More Embarrassing.

[Sign up for the Slatest](#) to get the most insightful analysis, criticism, and advice out there, delivered to your inbox daily.

A new scale of humiliation ritual kicked off this week as Elon Musk's lawsuit against OpenAI went to trial in Silicon Valley. The Tesla CEO, who co-founded OpenAI, is suing the artificial intelligence firm and two of its other co-founders, Sam Altman and Greg Brockman, for diverting from its original nonprofit goal of developing A.I. for the public good in favor of for-profit motives.

"This lawsuit is very simple: It is not OK to steal a charity," Musk said on the witness stand on Tuesday.

The trial is big by every conceivable measure. Both Musk and OpenAI have mustered high-dollar legal armies who are prepared to wage potentially years of litigation, including this federal trial. Millions of dollars are being lit on fire each week it unfolds, and the fight is over sums that are similarly astronomical: Musk is seeking more than \$130 billion in damages, as well as the removal of Altman and Brockman from the company, and a return of OpenAI to a pure nonprofit position. The jury's decision could change the very future of Silicon Valley and the future of tech throughout the world forever.

But it probably won't. Winning, at least in the legal sense, doesn't appear to be Musk's main goal. What the trial offers him is an opportunity: a very public forum in which to challenge OpenAI's story, drag its leadership through potentially embarrassing discovery and testimony, and inflict as much pain as possible on his rivals.

In Musk's telling, it went like this: He helped launch OpenAI as a nonprofit in 2015 because he was so afraid of the implications of artificial general intelligence that he wanted to make sure there was a firm out there ensuring that it benefits ["all of humanity."](#) Keeping OpenAI as a nonprofit, and *not* driven by shareholder interests, was meant to ensure that it acted as a transparent and safety-oriented counterweight to companies like Google's DeepMind that were developing A.I. in a closed, profit-driven way.

This is where it starts to get muddled. As it turned out, training bleeding-edge, frontier A.I. models was [very expensive](#). As costs rose, the nonprofit idea started to look more and more like a barrier to helping the company achieve its goals, since it limited its ability to raise money. Meanwhile, according to OpenAI, Musk wanted more control of the firm and proposed folding it into Tesla. Tensions rose and Musk eventually left OpenAI's board in 2018.

Things were quiet for a while. OpenAI began steadily drifting from its nonprofit mission by allowing outside investment, including a partnership with Microsoft in 2019. Musk went off to focus solely on making humans a multiplanetary species (just kidding: he became a [right-wing troll](#) during the pandemic and [bought Twitter](#) instead). Then OpenAI launched ChatGPT in 2022, transforming the A.I. firm into a household name overnight. Musk launched his own xAI the following year, and positioned himself as an outright rival to his old nonprofit.

By 2023, the fractures between Musk and OpenAI were much more apparent. He criticized it for being a “[closed source](#)” for-profit company. Of course, he also blasted it for being too “[politically correct](#)” and “[woke](#).” The situation came to a critical mass in 2024 when Musk sued OpenAI for diverging from its nonprofit mission. Following this, on X, he regularly excoriated Altman for “[stealing a charity](#)” and dubbed him “[Scam Altman](#).”

That brings us to the present day, where Musk’s lawsuit has made its way into an Oakland courtroom where he’s unlikely to win. Legal experts [largely agree](#) that Musk’s case doesn’t have a snowball’s chance in a [data center](#) of winning.

For one, the billionaire has limited leverage here. His money can only get him so far—he’s not a regulator or the California attorney general, officials typically responsible for enforcing nonprofits’ obligations. The judge allowed the case to go to trial based on a narrow exception, rooted in a 1964 precedent, that allows a donor with “special interest” to sue a nonprofit to make sure donated money is used for its intended purpose, if the AG was too busy to step in.

Even then, Musk’s core argument that OpenAI “betrayed the mission” is legally shaky. There’s no contract that said OpenAI had to remain a nonprofit forever. There’s also documentation that shows Musk himself, at various points, entertained for-profit structures. As he has a habit of doing, he’s making a massive financial decision mostly based on vibes.

So why is he doing this? We know that Musk can be vain and vindictive. He has a long history of turning personal grievances into public spectacles. He paid a premium for a social media platform and remade it in his own image. He’s used that same platform to lob explosive accusations at critics and allies alike, blowing up a professional and personal relationship with President Donald Trump by tying him to the Epstein files. It’s also why he baselessly accused a British diver of being a pedophile after he criticized his misguided effort to help a group of Thai children stuck in a flooded cave (yes, remember that?).

His case against OpenAI follows this pattern: a messy, high-stakes conflict waged more in the court of public opinion than the actual courtroom. That’s the point of all this. It’s not the money or the nonprofit status. It’s to drag OpenAI and its other founders through the mud until they come out the other side as dirty as he is.

Related From Slate



[Alex Kirshner](#)

[Why OpenAI’s Purchase of a Big Tech Podcast Is So Sleazy](#)

[Read More](#)

After all, dirt is sure to emerge. As the case proceeds, internal communications—emails, text messages, DMs—are going to surface that won't make anybody look good, least of all Musk. Already, the case is a less-than-flattering look at the Tesla CEO, with jury selection complicated by the fact that [“people don't like him.”](#) During his testimony and cross-examination on Tuesday and Wednesday, he looked petty and pugilistic, offering answers inconsistent with his deposition and quibbling with defense attorney William Savitt over yes-or-no questions for hours.

“I have never been more sympathetic to Sam Altman in my life,” Elizabeth Lopatto, senior writer for the Verge, [wrote after sitting through five hours of testimony from Musk.](#)

What is unfolding in the Oakland courtroom is less a trial about a nonprofit's mission and more an attempt at humiliation underwritten by the wealthiest man in the world, who is more chips than shoulder. He's somebody who knows the power of public perception. He's a lot like his old boss in the White House in that regard. Both men are keenly attuned to (and wield immense power over) digital and public media. Musk is one of the few people wealthy enough to casually throw this kind of money after a grievance.

Plus, there's a reason he's focusing his ire on Altman. OpenAI represents something that Musk has rarely had to contend with: a success story that outgrew him. Not only did the company continue after he left, but it flourished. Its flagship product, ChatGPT, has become shorthand for A.I. itself. It's the kind of cultural and commercial breakthrough that we haven't seen since the iPhone—and it happened largely without him. For a figure who is synonymous with the industries he touches—spaceflight, electric cars, social media—OpenAI's rise and dominance carry an uncomfortable implication: One of the most consequential technological shifts of our time can happen beyond his reach—and without his name and face attached to it. No wonder he's trying to hang on.

Get the best of news and politics

Sign up for Slate's evening newsletter.

Thanks for signing up! You can [manage your newsletter subscriptions](#) at any time.

You're already subscribed to the The Slatest newsletter. You can [manage your newsletter subscriptions](#) at any time.

We encountered an issue signing you up. Please try again, or [manage all your newsletter subscriptions here](#) .

Please enable javascript to sign up for newsletters.

Email address:

Send me updates about Slate special offers.

By signing up, you agree to our [Privacy Policy](#) and [Terms](#).

Sign Up

Produced by wallabag with tcpdf

Please open [an issue](#) if you have trouble with the display of this E-Book on your device.